

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 500

BY JUDICIARY, RULES AND ADMINISTRATION COMMITTEE

AN ACT

RELATING TO MOTOR VEHICLES; AMENDING SECTION 49-615, IDAHO CODE, TO REVISE PROVISIONS REGARDING THE EXERCISE OF DUE CARE; AMENDING SECTION 49-714, IDAHO CODE, TO PROVIDE FOR ELECTRIC-ASSISTED BICYCLES; AMENDING SECTION 49-715, IDAHO CODE, TO PROVIDE FOR HUMAN-POWERED VEHICLES, BICYCLES, AND ELECTRIC-ASSISTED BICYCLES AND TO MAKE A TECHNICAL CORRECTION; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 49-615, Idaho Code, be, and the same is hereby amended to read as follows:

49-615. DRIVERS TO EXERCISE DUE CARE. Notwithstanding other provisions of this title or the provisions of any local ordinance, every driver of a motor vehicle shall exercise due care to avoid colliding with any pedestrian or any ~~person propelling operator or rider of~~ a human-powered vehicle, bicycle, or electric-assisted bicycle and shall give an audible signal when necessary. Every driver of a motor vehicle shall exercise proper precaution upon observing any child or any obviously confused, incapacitated, or intoxicated person.

SECTION 2. That Section 49-714, Idaho Code, be, and the same is hereby amended to read as follows:

49-714. TRAFFIC LAWS APPLY TO PERSONS ON BICYCLES AND OTHER HUMAN-POWERED VEHICLES OPERATORS OR RIDERS OF HUMAN-POWERED VEHICLES, BICYCLES, OR ELECTRIC-ASSISTED BICYCLES -- DUE CARE. (1) ~~Every person operating a vehicle propelled by human power or riding a bicycle~~ Every operator or rider of a human-powered vehicle, bicycle, or electric-assisted bicycle shall have all of the rights and all of the duties applicable to the driver of any other vehicle under the provisions of chapters 6 and 8 of this title, except as otherwise provided in this chapter and except as to those provisions which by their nature can have no application.

(2) ~~Every operator or rider of a bicycle or human-powered vehicle~~ human-powered vehicle, bicycle, or electric-assisted bicycle shall exercise due care.

SECTION 3. That Section 49-715, Idaho Code, be, and the same is hereby amended to read as follows:

49-715. RIDING ON ~~BICYCLES~~ HUMAN-POWERED VEHICLES, BICYCLES, OR ELECTRIC-ASSISTED BICYCLES. (1) ~~A person propelling a bicycle shall not~~ No operator or rider of a human-powered vehicle, bicycle, or electric-assisted bicycle shall ride other than upon on or astride an attached permanent and regular seat.

1 (2) No ~~bicycle or human-propelled vehicle~~ human-powered vehicle, bicy-
2 cle, or electric-assisted bicycle shall be used to carry more persons at one
3 (1) time than the number for which it is designed and equipped.

4 (3) An adult rider may carry a child securely attached to his person in a
5 backpack or sling or in a child carrier attached to ~~the bicycle~~ a human-pow-
6 ered vehicle, bicycle, or electric-assisted bicycle.

7 SECTION 4. An emergency existing therefor, which emergency is hereby
8 declared to exist, this act shall be in full force and effect on and after
9 July 1, 2026.